

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Anna Steel	Team: Team # 4	CCRB Case #: 201004023	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Monday, 03/22/2010 11:00 PM	Location of Incident: In front of § 87(2)(b) and the 44th Precinct	18 Mo. SOL 9/22/2011	Precinct: 44
Date/Time CV Reported Fri, 03/26/2010 9:16 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 03/26/2010 9:16 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Nivia Fontanez	21868	946999	BX IRT
2. POM Alexis Dejesus	01421	946903	BX IRT
3. POM Steven Ramunno	11784	930874	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Steven Ramunno	Force: At § 87(2)(b) PO Steven Ramunno used physical force against § 87(2)(b)	A . Exonerated
B . POM Alexis Dejesus	Force: At § 87(2)(b) PO Alexis Dejesus used physical force against § 87(2)(b)	B . Exonerated
C . POM Steven Ramunno	Abuse: At § 87(2)(b) PO Steven Ramunno searched the car in which § 87(2)(b) was an occupant.	C . Exonerated
D . POM Steven Ramunno	Off. Language: At the 44th Precinct, PO Steven Ramunno made remarks to § 87(2)(b) based upon ethnicity.	D . Unsubstantiated
E . POF Nivia Fontanez	Off. Language: At the 44th Precinct, PO Nivia Fontanez made remarks to § 87(2)(b) based upon ethnicity.	E . Unsubstantiated

Case Summary

§ 87(2)(b) filed a complaint with the CCRB on March 26, 2010 (encl. 5a – 5b), and filed a complaint with Internal Affairs on April 21, 2010, generating log number 10-19804 (encl. 6a – 6b).

On March 22, 2010, at 11:00 PM, § 87(2)(b) was double-parked in front of § 87(2)(b) in the Bronx, when he was approached by PO Steven Ramunno, PO Alexis Dejesus, and PO Nivia Fontanez of the 44th Precinct. The following allegations resulted.

- **Allegation A – Force:** At § 87(2)(b) PO Steven Ramunno used physical force against § 87(2)(b).
- **Allegation B – Force:** At § 87(2)(b) PO Alexis Dejesus used physical force against § 87(2)(b) § 87(2)(g).
§ 87(2)(b) it is recommended that Allegations A and B be closed, **Exonerated**.
- **Allegation C – Abuse of Authority:** At § 87(2)(b) PO Steven Ramunno searched the car in which § 87(2)(b) was an occupant. § 87(2)(g)
§ 87(2)(b), it is recommended that Allegation C be closed, **Exonerated**.
- **Allegation D – Offensive Language:** At the 44th Precinct, PO Steven Ramunno made remarks based on § 87(2)(b)'s ethnicity.
- **Allegation E – Offensive Language:** At the 44th Precinct, PO Nivia Fontanez made remarks based on § 87(2)(b)'s ethnicity. § 87(2)(g)
§ 87(2)(b), it is recommended that Allegations D and E be closed, **Unsubstantiated**.

This case was originally assigned to Investigator Barto. Following his resignation from the agency, the case was reassigned to Investigator Steel on September 8, 2010.

Results of Investigation

Civilian Statements

Complainant: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male who § 87(2)(b) has black hair.

§ 87(2)(b) was interviewed at the CCRB on April 8, 2010 (encl. 7a – 7d). On March 22, 2010, at 11:00 PM, § 87(2)(b) was double-parked in front of § 87(2)(b) in the Bronx. He was waiting for his friend, § 87(2)(b) who soon exited the building and entered § 87(2)(b)'s vehicle. Before he could drive away, they were approached by three officers in a marked van, identified through the investigation as PO Steven Ramunno, PO Alexis Dejesus, and PO Nivia Fontanez of the 44th Precinct. PO Ramunno asked for his ID and told him to pull further up the street. § 87(2)(b) told PO Ramunno that he did not know why he needed to move if he was already parked and had his ID. When § 87(2)(b) asked if he should call 911, PO Ramunno said, "If you call 911, I will arrest you." PO Ramunno pulled § 87(2)(b) out of his vehicle by his shirt and pushed him against the side of his vehicle. § 87(2)(b) remained in the vehicle. PO Dejesus held § 87(2)(b) against the vehicle while PO Ramunno frisked and searched him. PO Ramunno handcuffed § 87(2)(b). PO Dejesus then pushed him into the rear of the police van. From within the police van, § 87(2)(b) saw PO Ramunno search under and around the front seats of his vehicle and in the glove compartment. PO Fontanez drove § 87(2)(b)'s vehicle to the 44th Precinct, where § 87(2)(b) was also taken. At the precinct, PO Ramunno asked § 87(2)(b) "how many coconut trees have you climbed in

today?” In response, § 87(2)(b) told PO Ramunno not to call him a ‘nigger,’ told the officers that he was a ‘Rasta man,’ and asked that they not ‘monkey him.’ § 87(2)(b) remarked to PO Fontanez that it would appear he did not have any rights. PO Fontanez replied, “Of course we have more rights than you, I was born here!” Pursuant to his arrest, § 87(2)(b) was charged § 87(2)(a) 160.50. § 87(2)(b) was also issued a § 87(2)(b) summons.

Witness: § 87(2)(b)

§ 87(2)(b) provided a telephone statement to the CCRB on April 28, 2010 (encl. 9), § 87(2)(g). § 87(2)(b). He stated that the officers, upon first approaching them, told § 87(2)(b) that he could not double park in front of § 87(2)(b). § 87(2)(b) became upset that the officers were telling him that he could not double park in his own neighborhood. He and PO Ramunno yelled at one another. At some point, § 87(2)(b) exited his vehicle and was then frisked and searched. § 87(2)(b) was still sitting in the front passenger’s seat of the vehicle. Meanwhile, PO Ramunno searched the front of § 87(2)(b)’s vehicle from the front driver’s side seat, looking under and around the seat and in the glove compartment. PO Ramunno told § 87(2)(b) to exit the vehicle. PO Ramunno then frisked § 87(2)(b) and felt inside his pockets. On June 6, 2010, § 87(2)(b) informed the CCRB that he did not wish for these allegations to be investigated (encl. 23c). When PO Ramunno did not find anything as a result of the search, he told § 87(2)(b) to return to his apartment. None of the officers requested § 87(2)(b)’s ID. § 87(2)(b) saw the officers leave the scene as he entered his building.

Subject Officer: PO STEVEN RAMUNNO

- PO Ramunno is a § 87(2)(b) white male § 87(2)(b).
- On the day of the incident, PO Ramunno was assigned to patrol and worked from 5:30 PM to 2:05 AM with PO Alexis Dejesus and PO Navia Fontanez in uniform and a marked vehicle.

Memobook

PO Ramunno’s memobook (encl. 10a – 10b) notes that at 11:00 PM, § 87(2)(b) was arrested § 87(2)(a) 160.50. § 87(2)(b)

CCRB Testimony

PO Ramunno was interviewed at the CCRB on October 6, 2010 (encl. 11a – 11b). On March 22, 2010, at 11:00 PM, PO Ramunno and his partners, PO Dejesus and PO Fontanez, saw § 87(2)(b) double-parked in front of § 87(2)(b) in the Bronx. The street was narrow and PO Ramunno could not maneuver his van past the vehicle. PO Ramunno asked § 87(2)(b) to move his vehicle. Another male, identified through the investigation as § 87(2)(b) was in the passenger’s seat of the vehicle. § 87(2)(b) immediately became combative. He yelled and cursed at the officers, telling them to go find ‘some real crime.’ PO Ramunno asked him to calm down. When § 87(2)(b)’s behavior did not abate, PO Ramunno requested his ID for the purposes of issuing him a summons § 87(2)(a) 160.50. § 87(2)(b) refused repeated commands to give up his ID. PO Ramunno and his partners exited their vehicle. PO Ramunno told him to exit his vehicle. § 87(2)(b) refused and kept yelling and cursing at the officers. PO Ramunno decided to place § 87(2)(b) under arrest. PO Ramunno and PO Dejesus opened the driver’s side door of his vehicle, grabbed § 87(2)(b) by his shoulder and arm, and pulled him out of the vehicle. They told him to place his hands behind his back. § 87(2)(b) refused and resisted by locking his arms at his chest. PO Ramunno and PO Dejesus grabbed his arms, pulled

them behind his back, and handcuffed him. He was then frisked and searched pursuant to his arrest, though PO Ramunno did not recall by whom. § 87(2)(b) was then placed in the rear of their marked police van. PO Ramunno approached § 87(2)(b) still seated in § 87(2)(b)'s vehicle, and asked why his friend had grown so combative. § 87(2)(b) had no explanation for § 87(2)(b)'s behavior. § 87(2)(b) was told to exit the vehicle and frisked as a safety precaution to ensure that he did not have any weapons, though PO Ramunno did not know by whom. PO Fontanez drove § 87(2)(b)'s vehicle to the 44th Precinct, where it was inventory searched. PO Ramunno did not recall if he searched § 87(2)(b)'s vehicle, though he confirmed that an inventory search may be conducted at either the scene of an arrest or at a stationhouse. PO Ramunno never asked § 87(2)(b) how many coconut trees he had climbed that day and PO Fontanez never said, "Of course we have more rights than you, I was born here!"

§ 87(2)(g)

Subject Officers: PO ALEXIS DEJESUS, PO NAVIA FONTANEZ

- PO Dejesus is a § 87(2)(b) Hispanic male, § 87(2)(b)
- PO Fontanez is a § 87(2)(b) Hispanic female § 87(2)(b).
- On the day of the incident, PO Dejesus and PO Fontanez held PO Ramunno's assignment.

Memobook

PO Dejesus' memobook (encl. 12a – 12b) notes that at 11:00 PM, the driver of a double-parked Pathfinder refused to obey orders and was arrested § 87(2)(a) 160.50. PO Fontanez's memobook (encl. 14a – 14c) noted the same.

CCRB Testimony

PO Dejesus and PO Fontanez were interviewed at the CCRB on June 30, 2010 (encl. 13a – 13b; encl. 19a – 19b), § 87(2)(g). § 87(2)(b): they confirmed that § 87(2)(b) refused to give his ID, refused to exit his vehicle, yelled and cursed at the officers, and resisted when handcuffed. PO Dejesus frisked § 87(2)(b) but did not know if PO Ramunno frisked or searched § 87(2)(b) as well. PO Dejesus did not know if § 87(2)(b) was frisked or searched. PO Fontanez stated that either she or PO Ramunno frisked § 87(2)(b). PO Dejesus did not know if PO Ramunno searched § 87(2)(b)'s vehicle, though he confirmed that it was transported back to the 44th Precinct. PO Fontanez stated that PO Ramunno searched the vehicle at the scene, after which she transported it back to the 44th Precinct stationhouse where it was inventoried. PO Ramunno never asked § 87(2)(b) how many coconut trees he had climbed that day and PO Fontanez never remarked, "Of course we have more rights than you, I was born here!"

NYPD Document(s)

Complaint Report

- According to § 87(2)(b)'s complaint report (encl. 18a – 18b), he was observed double parked and, when asked for his driver's license, became very aggressive and rude. He yelled, cursed, was disrespectful, refused to exit his vehicle. When the officers handcuffed him, he became more aggressive and tried to fight with the officers.

Summons/Arrest for Incident and Disposition

- Pursuant to his arrest, § 87(2)(b) was charged § 87(2)(a) 160.50

§ 87(2)(b) was also issued a summons § 87(2)(b) As of the date of this report, no information regarding the disposition of these charges could be found.

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of October 6, 2010, with regard to the incident (encl. 22).

§ 87(2)(b) § 86(1)(3)&(4) § 87(2)(c)

Civilian(s) CCRB History

- § 87(2)(b) has filed one prior CCRB complaint § 87(2)(b)

Subject Officer(s) CCRB History

- PO Ramunno has been a member of the service for seven years, PO Dejesus and PO Fontanez have been members of the service for two years, and there are no substantiated CCRB allegations against them (encl. 3a – 3d).

Conclusion

Identification of Subject Officer(s)

- PO Ramunno, PO Dejesus, and PO Fontanez acknowledged interacting with § 87(2)(b)

Investigative Findings and Recommendations

Allegations Not Pleaded

- § 87(2)(g)
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Allegation A – Force: At § 87(2)(b) PO Steven Ramunno used physical force against § 87(2)(b)

Allegation B – Force: At § 87(2)(b) PO Alexis Dejesus used physical force against § 87(2)(b)

It is undisputed that PO Ramunno and PO Dejesus used force against § 87(2)(b) According to Patrol Guide 203-11, an officer may use that amount of force necessary to overcome resistance and effect an arrest (encl. 1). § 87(2)(g)

§ 87(2)(g) . It is therefore recommended that Allegations A and B be closed, **Exonerated**.

Allegation C – Abuse of Authority: At § 87(2)(b) PO Steven Ramunno searched the car in which § 87(2)(b) was an occupant.

It is undisputed that § 87(2)(b) s vehicle was impounded and transported to the 44th Precinct. According to Kamins, New York Search & Seizure, p. 5-112 (2007 ed.), a vehicle may be impounded if it is “illegally parked and presents a danger or an impediment to traffic” (encl. 2a – 2c).

§ 87(2)(g) . As noted in Kamins, New York Search & Seizure, once impounded, an inventory search of a vehicle may be conducted for administrative purposes...and it is not required that this search be conducted at the precinct (encl. 2a – 2c). § 87(2)(g)

§ 87(2)(g) . It is therefore recommended that Allegation C be closed, **Exonerated**.

Allegation D – Offensive Language: At the 44th Precinct, PO Steven Ramunno made remarks based on § 87(2)(b) s ethnicity.

Allegation E – Offensive Language: At the 44th Precinct, PO Nivia Fontanez made remarks based on § 87(2)(b) s ethnicity.

§ 87(2)(b) alleged that PO Ramunno asked him how many coconut trees he had climbed that day and that PO Fontanez remarked to him, “Of course we have more rights than you, I was born here!” § 87(2)(g)

§ 87(2)(g) . PO Ramunno and PO Fontanez denied making any such comments. § 87(2)(g)

Team: _____

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Investigator: _____
Signature _____ Print _____ Date _____

Supervisor: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature _____ Print _____ Date _____